TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
OCTOBER 26, 2020
MINUTES

Attachment 1--**Staff Report**

Present: Barry Wolff, Chair, Julian Hopkins, Beth Santilli, Elliott Barrow, Stephen Wood, Stephen Duke, Megan Stevens.
Staff: Michael Robertson, Lynnette Lynes

Mr. Wolff called the meeting to order at 6:25 pm

A. Approval of Agenda

- *Mr. Wood moved for approval of the agenda. Mr. Duke seconded the motion. All in favor.*

B. Approval of Minutes

- *Ms. Stevens moved for approval of the minutes. Mr. Wood seconded the motion. All in favor.*

C. Explanation of Procedures

- Mr. Wolff reviewed the procedures with the public.

D. Public Comment

- Mr. John Wright, 145 Rose Lane, thanked the Board for their service. He spoke regarding the requests for Rose Lane and asked that they be approved. He suggested that the properties on Rose Lane have historic significance and should be considered historic.

E. General Correspondence

All correspondence received was distributed to the Board and included on the agenda.

F. Administration of Oath

- Mr. Wolff administered the oath to those speaking.

G. Business

1. **Case V-27-2020, 100 Ann Edwards Lane, Town Hall Athletic Field, TMS# 517-00-00-010, Request for relief from the strict application of 156.318 (Q)(5) to allow 70-foot tall lighting on the athletic field. The ordinance limits the height to 60-feet and further limits the height to 40-feet within 50-feet of residentially zoned properties outside the district. This item was deferred by the Board at the September meeting. CORRESPONDENCE**

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

▶ Mr. Billy Connell, representative for applicant, reviewed the request with the Board.

▶ Mr. Brian Hartman, Moscow Sports lighting, reviewed the lighting analysis with the Board. He stated that having the higher height would reduce the amount of spillover and glare onto neighboring property.

▶ There being no further comments, Mr. Wolff closed public comment.

▶ *Mr. Hopkins moved for approval based on the findings included in the application and staff report. Mr. Duke seconded the motion. Motion passed on a 6 to 1 vote with Mr. Wolff, Ms. Santilli, Mr. Hopkins, Ms. Stevens, Mr. Duke and Mr. Wood in favor; Mr. Barrow opposed.*

2. **Case V-28-2020, 127 Rose Lane, TMS# 532-01-00-154, Request for relief from the strict application of Section 156.111 Location of Accessory Uses to allow a 3-foot, 10-inch side setback for open storage space parking for motor vehicles. The ordinance requires a 4-foot, 9 ½" side setback accessory use setback. CORRESPONDENCE**

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

▶ Ms. Jody Crosby reviewed the request with the Board.

Ms. Mary Eddings, Washington DC, stated that she grew up on Rose Lane and has always had the intention to return to live on Rose Lane. She stated that the request is to have a quaint home. She stated that she showed the proposal to the neighbors and no one was in objection. She suggested that it would be a nice addition to the neighborhood.

Mr. Wolff asked if this is the home closest to Simmons Street. Ms. Eddings stated affirmative.

Mr. John Wright stated that he is in favor of the request and asked that the request be granted.

There being no further comments, Mr. Wolff closed public comment.

Mr. Barrow moved for approval of the request based on the findings that it has met the state requirements and would not unreasonably restrict utilization of the property. Ms. Santilli seconded the motion. Motion passed on a 6 to1 vote with Mr. Wolff, Ms. Santilli, Mr. Barrow, Mr. Hopkins, Ms. Stevens, and Mr. Duke in favor; Mr. Wood opposed.

3. **Case V-29-2020, 103 Rose Lane, TMS# 532-01-00-169, Request for relief from the strict application of Sections 156.007 Definitions, Building Line, to allow front and rear setbacks along length and side yard setbacks along depth. Ordinance requires front and rear yards along the depth (shorter side) and sides along the length (longer).**

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Chad Quirin reviewed the request with the Board. He stated that he has contacted his neighbors and they are in favor of the request.

Mr. Wright stated that he is in favor of the request.

- Ms. Eddings stated that she is in support of the request.

- Ms. Donna, 134 Rose Lane, stated that she is in favor of the request.

- There being no further comments, Mr. Wolff closed public comment.

- *Mr. Barrow moved for approval based on the findings that the criteria has been met and based on public comments, the approval would not be a detriment to the surrounding properties. Ms. Stevens seconded the motion. All in favor.*

4. **Case V-30-2020, 640 Atlantic Street, TMS# 532-06-00-120, Request for relief from the strict application of Section 156.111 Location of Accessory Uses to allow an existing a five to six-foot encroachment of an accessory structure in the rear yard accessory structure setback. The ordinance requires a six-foot rear yard accessory structure setback.**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

- Mr. Ed Johnson, owner, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Ms. Stevens moved for approval based on the findings that the structure has been in existence and original placement was not under their control. Mr. Hopkins seconded the motion. All in favor.*

5. **Case V-31-2020, 750 Atlantic Street, TMS# 532-06-00-098, Request for relief from the strict application of 156.303 to allow a five-foot front yard encroachment for a porch. The ordinance requires a 20-foot front yard setback.**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

- Mr. Ollie Thompson, owner, reviewed the request with the Board.

- There being no comments, Mr.Wolff closed public comment.

- *Ms. Stevens moved for approval based on the findings that it has different zoning and it would be a detriment to move the home. Mr. Barrow seconded the motion. All in favor.*

The Board convened for a short break at 7:56 pm and reconvened at 8:00 pm.

6. **Case V-32-2020, 2361 Chadbury Lane, TMS# 558-00-00-514, Request for relief from the strict application of §156.111 Location of Accessory Structures to allow an accessory structure with a footprint of 836 square feet. The ordinance limits accessory structures to 600 square feet in the R-3 zoning district.**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

- Ms. Kimberly Byrd reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Mr. Wood moved for denial based on the findings that it does not meet the hardship criteria. Motion failed due to the lack of a second.*

- *Mr. Barrow moved for approval based on the findings that it is an odd shaped lot and unique, application or the current ordinance would unreasonably restrict that portion of the property, and it would not be a detriment to the character of the district as the HOA architectural review board is in favor of the request as well as neighbors. Ms. Stevens seconded the motion. Motion passed on a 6 to 1 vote with Mr. Wolff, Ms. Santilli, Mr. Barrow, Mr. Hopkins, Ms. Stevens and Mr. Duke in favor; Mr. Wood opposed.*

7. **Case V-33-2020, 3 William Street, TMS# 532-13-00-133, Request for relief from the strict application of §156.313 (E)(3) Old Village Historic District and §156.303 (C) to allow 45.20% impervious lot**

coverage. The ordinances limit impervious lot and building coverage to 40%.

- Mr. Robertson reviewed staff comments with the Board (attachment 1). He noted that the applicant was not present and reviewed the Board's options.

- *Mr. Barrow moved for deferral. Ms. Santilli seconded the motion. All in favor.*

8. **Case S-3-2020, 922 McCants Drive, TMS# 532-07-00-036, Request for a Special Exception to host a homeschool group of six (6) first grade students and a certified elementary school teacher also known as a "pandemic pod" in accordance with the provisions of §156.326 (C)(3)(g) *school, primary and school, secondary.***

This item was withdrawn by staff.

H. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 8:23 pm.

Submitted by,
L. Lynes
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